
Appeal Decision

Site visit made on 18 August 2026

by **P Barton BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 7th September 2026

Appeal Ref: 6011103

Land between Rudyard Road and Hot Lane, Biddulph Moor, Stoke-on-Trent ST8 7JL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr & Mrs Webb against the decision of Staffordshire Moorlands District Council.
 - The application Ref is SMD/2025/0537.
 - The development proposed is construction of up to 9 dwellings.
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Decision

1. The appeal is allowed and permission in principle is granted for construction of up to 9 dwellings at land between Rudyard Road and Hot Lane, Biddulph Moor, Stoke-on-Trent ST8 7JL in accordance with the terms of the application, Ref SMD/2025/0537.

Application for Costs

2. An application for costs has been made by Mr & Mrs Webb against Staffordshire Moorlands District Council, and this is the subject of a separate decision.

Preliminary Matters

3. I have added the postcode given in the appeal form to the address in the banner heading above for completeness.
4. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given the opportunity to comment, and the comments received have been taken into account in the determination of the appeal.
5. The proposal is for permission in principle. The Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first (or permission in principle stage) establishes whether a site is suitable in principle and the second (technical details consent stage) is when the detailed development proposals are assessed. This appeal relates to the first stage.
6. The scope of the considerations for permission in principle is limited to location, land use and the amount of development proposed. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.

Main Issues

7. The main issues are whether the site is suitable for residential development, having regard to its location, the proposed land use and the amount of development, with particular reference to:
- whether the appeal site is grey belt and whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and any relevant development plan policies;
 - the effect of the proposal on the character and appearance of the area; and
 - whether the site would be a suitable location for the proposal, in respect of the spatial strategy in the Development Plan.

Reasons

Whether inappropriate development in the Green Belt

8. The appeal site is part of an undeveloped field, with housing to its south and west, a house in generous grounds to its east, and a village hall to its north, which is located within the Green Belt. The Framework identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The essential features of Green Belts are their openness and permanence. The Framework states that inappropriate development is harmful to the Green Belt and should not be approved except in very special circumstances.
9. Policy SS10 of the Staffordshire Moorlands Local Plan (September 2020) (SMLP) relates to, in part, the strategy for the Green Belt. Section 6 seeks to maintain the Green Belt and strict controls will be exercised over inappropriate development within the Green Belt, allowing only for exceptions as defined by Government policy. As such there is consistency with the Framework.
10. Development within the Green Belt is inappropriate unless it falls within one of the exceptions given in policy GB7 of the Framework. The appellant contends that the proposal would not represent inappropriate development in the Green Belt in terms of Policy GB7 (1)(g) of the Framework, which is subject to four criteria (i-iv).
11. Grey Belt is defined in the Framework as land in the Green Belt comprising previously developed land and/or any other land that, in either case, does not strongly contribute to purposes (a), (b) or (d) in Policy GB2 (1). Purpose (a) is to check the unrestricted sprawl of large built-up areas; (b) is to prevent neighbouring towns merging into one another; and (d) is to preserve the setting and special character of historic towns.
12. There appears to be no disagreement between the main parties that the site does not strongly contribute to purposes (b) or (d) and on the evidence before me, I find no reason to reach a different conclusion. The area of dispute centres on purpose (a) and the Council contends that Biddulph Moor forms part of a substantial built-up area. No definition of a large built-up area is provided by the Framework, though Annex E is clear that villages should not be considered as such.
13. SMLP Policy SS2 sets out the settlement hierarchy in the plan area and highlights that 'Rural Area Larger Villages' are the most sustainable settlements in the rural areas, which generally have a good local social infrastructure, some local

employment opportunities and good accessibility to the towns and larger centres. Biddulph Moor is identified as a larger village, under SMLP Policy SS8.

14. I observed that Biddulph Moor incorporates predominantly residential development interspersed with services and facilities, including a public house, post office and general store, pharmacy, school, village hall and places of worship. I also saw a bus stop close to a number of these. Beyond the built-up area, Biddulph Moor has a rural setting, that predominantly consists of open fields and sporadic clusters of buildings. Due to its size, the visual relationship with the surrounding open countryside is a prevailing feature, resulting in a strong sense of being within a small rural settlement.
15. There is a noticeable intervening distance between Biddulph Moor and the considerably larger settlement of Biddulph, which is identified as one of the three principal towns of the Staffordshire Moorlands District, consisting of mainly open countryside. I found Biddulph Moor to be distinctly separate from, and not an offshoot of, Biddulph.
16. Taking all these factors into account and whilst it is a built-up area, I do not consider that Biddulph Moor constitutes a large built-up area for the purposes of this assessment. Given that the appeal site adjoins the edge of Biddulph Moor, it follows that the site does not strongly contribute to purpose (a). Consequently, the site can be identified as grey belt.
17. Due to the modest size of the site, degree of containment by existing development, and position relative to settlements, the appeal scheme would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan. Therefore, I have found that the development would comply with criterion (i) of Policy GB7 (1)(g).
18. There is no dispute that the Council does not have a 5-year supply of deliverable housing sites. This constitutes an evidenced unmet need for the type of development proposed and the proposal accords with criterion (ii).
19. Criterion (iii) relates to the development being in a sustainable location, with particular reference to Policy TR3 of the Framework. Services and facilities within Biddulph Moor are within walking distance of the appeal site, including bus services to larger settlements. Routes to these from the appeal site would be along Rudyard Road and Hot Lane, which have footpaths and street lighting, except for a stretch along Hot Lane, which I saw had no footpath. Nevertheless, I observed that this stretch was of a modest distance, the road was relatively flat and straight with good visibility in either direction. In my judgment, this location should limit the need to travel, particularly by private car, and offer a genuine choice of transport modes for future residents of the proposed dwellings. Moreover, there is no compelling evidence before me, which suggests that a suitable access to the site could not be delivered.
20. Bringing all of these factors together, the proposed development would be located where it can support sustainable patterns of movement, enable good accessibility for different users and make the most of existing transport infrastructure. As such, the development would be in a sustainable location, and criterion (iii) is met.
21. As the proposal is not for a major development, criterion (iv) is not relevant.

22. The site's planning history is materially different to the appeal scheme in terms of the type of development and their determination under earlier versions of Green Belt Policy. I give this material consideration limited weight, as well as previous assessments relating to the potential allocation of the site for housing, and it has not swayed me away from my findings.
23. In conclusion, the proposed development would meet the criteria set out in Policy GB7 (1)(g) of the Framework and would not be inappropriate development in the Green Belt. It would also comply with SMLP Policy SS10 insofar as it is relevant to this main issue. Therefore, it is not necessary to consider the effect of the proposed development on the openness of the Green Belt, or whether very special circumstances exist.

Character and appearance

24. Contributing to the rural setting of Biddulph Moor, the appeal site marks a boundary between a built-up area and the countryside. The proposal would have a visible urbanising effect with the introduction of new dwellings onto the site. Although, the extent of those effects would depend on the final quantum of development and factors such as the retention of existing, and proposed, landscaping, which would be assessed at the technical details consent stage.
25. By virtue of the site's linear nature and positioning to surrounding development, the proposal would appear as a logical, sensitive and proportionate extension to the edge of the settlement and not as a prominent intrusion into the countryside. Due to its proximity to existing buildings, including housing, some urbanising effects of the proposal would not be at odds with the character of the area. Visual effects would be localised and there is no compelling case before me that the proposal could not be delivered in a manner that would relate well to the neighbouring pattern of development and the surrounding countryside.
26. Therefore, and having regard to the scope of considerations at this stage, the proposal would have an acceptable effect on the character and appearance of the area, according with SMLP Policy DC3, which seeks to protect and, where possible, enhance local landscape and the setting of settlements. It would also comply with Policy DES 1 of the Biddulph Neighbourhood Plan (December 2023) (NP), which, inter alia, requires new development to complement the local context.

Location

27. The appeal site is located outside, but adjoining, the defined settlement boundary of Biddulph Moor and is classed as being in the countryside. SMLP Policies SS1, SS10 and H1 seek, amongst other things, to restrict development in the countryside to concentrate most development in or adjoining existing built-up areas.
28. A result of the site's length between Hot Lane and Rudyard Road and the positioning of some of the surrounding development on the opposite sides of public highways, is that, in my judgment, it does not constitute limited infill residential development. This would not accord with the exception given in Policy H1 (4)(b) for housing development on unallocated sites outside of development boundaries.

29. Consequently, the site would not be a suitable location for the proposal, in respect of the spatial strategy in the Development Plan, contrary to SMLP Policies SS1, SS10 (insofar as it is relevant to this main issue) and H1. It is also contrary to NP Policy HOU2 of the which supports housing development of small infill sites within existing residential built frontages, which normally comprise 1 to 3 houses and unlikely to exceed 5.

Planning Balance

30. I have found the proposal to be contrary to SMLP Policies SS1, SS10 (insofar as it relates to location) and H1, as well as NP Policy HOU2.
31. In terms of benefits, the proposal would make a positive contribution in the creation of up to 9 dwellings, where the Framework instructs substantial weight to be given to the provision of homes, in a sustainable location. There would also be associated economic benefits during the period of construction and once the dwellings are occupied as well as the delivery of Biodiversity Net Gain.
32. Due to the current housing supply shortfall, I have found the harm arising from the conflict with the development plan to be moderate. Therefore, in the context of policy S5 of the Framework, the adverse effects of the development would not substantially outweigh the benefits listed above when assessed against the national decision-making policies.
33. There is no evidence before me to allow for an assessment in relation to policy S6 of the Framework. For the purposes of my assessment, even if the policy was engaged, I have found that the benefits would outweigh the conflict with the development plan.
34. Therefore, the proposed development would benefit from the presumption in favour of sustainable development, and this amounts to a material consideration of sufficient weight to make a decision other than in accordance with the development plan.

Other Matters

35. The reason for refusal includes SMLP Policies SD5 and T1, which relate to flood risk and transport respectively. These matters are not expanded upon within the text of the reason for refusal and the Council's submission recognises that matters such as drainage and highways would be considered at a later stage. Moreover, these policies are not listed in the conclusions contained in the Council's case, which lists the policies that it considers the proposal conflicts with. On this basis, and that the application represents the first of the 2 stages of the permission in principle consent route, I have not considered these matters further.
36. Residents have expressed a wide range of other concerns including, but not limited to: electricity supply capacity, ecology, heritage, light intrusion, house sales and property values, noise and disturbance from construction, and the living conditions of neighbours.
37. The Council's officer report addresses these concerns, including relevant consultee responses, and these did not form part of the reason for refusal, which I have dealt with in the assessment above. There is no compelling evidence that would lead me to reach a different conclusion to the Council on these matters.

38. I acknowledge concerns regarding how allowing the appeal might set a precedent for similar development elsewhere. Whilst I recognise that consistency in the planning process is important and like cases should be decided in a like manner, it is also important to reiterate that each case is determined on its own merits and on the basis of evidence. As such, I am satisfied that my decision on this proposal, on this particular site, would not harm the ability of the Council to exercise in equity their judgement, as I have done in this case, in future cases.
39. It is not possible for conditions to be attached to a grant of permission in principle, and I note that some consultees recommend conditions. These would need to be considered at the technical details consents stage, where these matters can be addressed and conditions can be imposed.

Conclusion

40. The proposed development would conflict in part with the development plan, but material considerations, including the Framework, indicate that a decision should be made other than in accordance with it. Therefore, the appeal is allowed.

P Barton

INSPECTOR